

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION**

**CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next
friend for his minor children,**

Plaintiff/Petitioner,

v.

Case No.: 25-CA-010255

Division: B

**THIRTEENTH JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, COURT ADMINISTRATOR GINA
JUSTICE, MIKE MOORE, AND CLERK OF
COURT VICTOR CRIST,**

Defendants/Respondents.

**PLAINTIFF'S MOTION FOR SANCTIONS AND ENTRY OF
PEREMPTORY WRIT OF MANDAMUS, OR, ALTERNATIVELY,
FOR WRITTEN ORDER WITH FINDINGS SETTING
EVIDENTIARY HEARING**

Plaintiff, Christopher Hanson, respectfully moves this Court, pursuant to Article I
Section 24 of the Florida Constitution, Florida Rule of Judicial Administration **2.420(i)**,
Florida Rule of Civil Procedure **1.380**, Section **119.12**, Florida Statutes, Florida Rule of

Civil Procedure 1.630(e), and the Court's inherent authority to sanction bad-faith litigation conduct, for (a) entry of the peremptory writ of mandamus on the ground that Defendants have waived any claimed exemption as a matter of law and have filed a legally insufficient return to the Alternative Writ; (b) in the alternative, an order striking Defendants' unparticularized confidentiality assertion under Florida Rule of Civil Procedure 1.140(f), followed by entry of the peremptory writ; (c) in the further alternative, formal sanctions against the Judicial Defendants and their counsel of record; or (d) in the further alternative, entry of a written order containing specific findings of fact and conclusions of law identifying the material facts the Court finds to be genuinely disputed and the evidentiary support for those facts in the record, so that the parties may consider any necessary remaining discovery before an evidentiary hearing on the facts still in dispute.

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Scope:

This Motion addresses the issues raised during the April 13, 2026 hearing, which overlap with those raised in Plaintiff's Motion for Summary Final Order Compelling Production of Public Records and Entry of Peremptory Writ of Mandamus (the "MSFO"), filed April 9, 2026. At the April 13, 2026 hearing, Plaintiff argued that as Judicial Defendants pointed out, the discovery phase was over and that, based on the absence of any genuine dispute as to any material fact, entry of the peremptory writ was appropriate. Plaintiff further argued that the bad faith shown by Defendants throughout— notwithstanding procedural accommodations extended to Defendants well beyond those authorized by the Florida Rules of Civil Procedure—justified expedited production, given the April 17, 2026 hearing on the same Motion to Appoint Guardian Ad Litem to which the withheld April 4, 2025 hearing video directly relates. The Court indicated it was

proceeding toward a final hearing. Consistent with that indication, Plaintiff now files this Motion to either obtain mandamus, to present the formal sanctions record the rules require and to narrow the issues the Court will need to resolve. In support thereof, Plaintiff states as follows:

I. LEGAL FRAMEWORK

1. This is a public-records mandamus action for records of the judicial branch under Article I, Section 24 of the Florida Constitution; Florida Rule of Judicial Administration 2.420; and, to the extent applicable, Chapter 119, Florida Statutes. The procedural vehicle is an original proceeding under Rule 1.630, with summary disposition sought under Rule 1.510. Rule 2.420(l) expressly prescribes mandamus as the remedy for denial of access to administrative records of the judicial branch. Two judges of this Court have independently found a *prima facie* case. (Doc. 47, Alt. Writ by Judge Frayman; Doc. 61, Order of Judge Coleman, Feb. 9, 2026.)
2. Rule 1.630(e) requires that a Defendant respond to a writ as provided in **Rule 1.140**. When such a response is filed, **Rule 1.140(d)** mandates that the Court determine the legal sufficiency of the defenses 'before trial.' This procedural requirement, coupled with the priority mandates of **Fla. R. Gen. Prac. & Jud. Admin. 2.420(i)** and **Section 119.11(1), Florida Statutes**, leaves the Court with only two valid paths: grant the Peremptory Writ as a matter of law or immediately identify and set a hearing for the specific facts in dispute.
3. Whether the governing framework is Chapter 119 or Rule 2.420, the custodian's procedural duties are materially identical: §119.07(1)(f) ("state in writing and with particularity the reasons" for any exemption); Rule 2.420(m)(2) ("the custodian shall state in writing the basis for the denial"); Rule 2.420(e)(1) (any claim of confidentiality requires a written Motion to Determine Confidentiality identifying particular records, specifying bases, citing specific legal authority, and accompanied by a signed good-faith certification); Rule 2.420(c)(9)(B)–(C) (findings of "no broader than necessary" and "no less restrictive measures" required). Despite the

Court granting 3 chances to respond to the writ, the 13th Circuit has done none of that.

4. **Rule 2.420(i) expressly authorizes sanctions against parties and their attorneys.**

The rule provides, in relevant part:

- a. Sanctions. After notice and an opportunity to respond, and upon determining that a motion, filing, or other activity described below was not made in good faith and was not supported by a sound legal or factual basis, the court may impose sanctions against any party or non-party and/or their attorney, if that party or non-party and/or their attorney, in violation of the applicable provisions of this rule: (1) seeks confidential status for non-confidential information by filing a notice under subdivision (d)(2); (2) seeks confidential status for non-confidential information by making any oral or written motion under subdivision (d)(3), (e), (f), (g), or (h); [***] Nothing in this subdivision is intended to limit the authority of a court to enforce any court order entered pursuant to this rule.
5. Rule 2.420(i) thus supplies a rule-based sanctions remedy targeted at precisely the misconduct at issue here offers an extreme example in that the Judicial Defendants have failed to even identify the precise materials concealed let alone pursue any steps required by rule for a finding of confidentiality. Plaintiff has consistently pursued the video for over a year and other materials sought for several months. Judicial defendants have waived any opportunity to claim confidentiality while failing to follow the rules for several months.
 6. Claiming confidential status for records that the custodian cannot, in good faith and with sound legal and factual basis, demonstrate are actually confidential—and doing so without invoking the formal Rule 2.420(e) Motion to Determine Confidentiality procedure the rule requires. The Rule 2.420(i) remedy is **independent of, and cumulative to**, the attorney's-fees remedy in §119.12, Florida Statutes, the discovery

sanctions available under Florida Rule of Civil Procedure 1.380, the §57.105 remedy against counsel, and the Court's inherent authority. This Motion invokes all of them.

**II. THE FATAL DEFECT: DEFENDANTS HAVE NOT IDENTIFIED ANY
SPECIFIC WITHHELD RECORD OR PARTICULARIZED ANY EXEMPTION
BEYOND THE VAGUE AND UNSUPPORTED SECURITY LABEL**

—
DISPOSITIVE AS A MATTER OF LAW

7. The defect at the heart of this case is more fundamental than any sanctions rule is designed to address. The Judicial Defendants have refused to engage as the Rule requires. They have never identified, on a record-by-record basis, what they are withholding. They have never particularized any exemption in writing. They have never filed the Rule 2.420(e)(1) Motion to Determine Confidentiality the rule requires. They have substituted a conclusory "confidential" label for every procedural predicate the Florida Constitution, Chapter 119, and Rule 2.420 impose on a custodian. That conduct is dispositive on five independent grounds.

A. Defendants Have Waived Any Claimed Exemption as a Matter of Law.

8. The statutory and rule-based duties of a custodian claiming an exemption are not procedural niceties—they are **conditions precedent** to the assertion of the exemption itself. Sections 119.07(1)(d)–(f) require the custodian to redact and produce the non-exempt remainder, to state the basis of the exemption with statutory citation, and upon request to "state in writing and with particularity the reasons" for any claimed exemption. Rule 2.420(m)(2) imposes a parallel duty. These are ministerial duties—the precise kind for which mandamus is the designated remedy.
7. A custodian who fails to perform these fundamental duties has not validly asserted an exemption; rather, the exemption is waived. This constitutional and statutory framework is functionally identical to the civil-discovery rule dictating that a party who fails to produce a particularized privilege log waives the asserted privilege. See

Fla. R. Civ. P. 1.280(b)(6); cf. *Gosman v. Luzinski*, 937 So. 2d 293, 296 (Fla. 4th DCA 2006) (holding that the failure to prepare a privilege log results in a waiver of the privilege). The animating principle is exactly the same because the structural purpose is the same: the requesting party and the trial court must be permitted to test the factual and legal validity of the claimed protection. A party who deliberately refuses to identify what he claims is protected has abandoned the claim as a matter of law.

8. The constitutional underpinning is even stronger in the public-records context. Exemptions from the Article I, Section 24 right of access must be **narrowly construed and particularly justified**. See *Baker Cnty. Press, Inc. v. Baker Cnty. Med. Servs., Inc.*, 870 So. 2d 189 (Fla. 1st DCA 2004) (wholesale or blanket exemption claims are constitutionally inadequate); *Woollong v. Lamar*, 764 So. 2d 568, 572 (Fla. 5th DCA 2000) (burden on the custodian). A bare "confidential" label does not carry that burden; it inverts the constitutional presumption of access. On this record—an un-identified universe of records, a wholesale label, no particularized reasons, no good-faith certification, no sworn support—any claimed exemption is **waived as a matter of law**. Waiver is a legal conclusion, not a discretionary finding. The Court need not find bad faith to apply it.

B. Defendants' Return Is Legally Insufficient Under Rule 1.630(e); Entry of the Peremptory Writ Is the Mandatory Consequence.

9. Rule 1.630(e) is mandatory and non-discretionary: once the alternative writ issues, the respondent must either produce the records or show cause via a return that complies with the standards of Rule 1.140. Pursuant to Fla. R. Civ. P. 1.140(d), the legal sufficiency of such a return 'shall be heard and determined before trial,' a requirement made urgent by the expedited mandates of Fla. R. Gen. Prac. & Jud. Admin. 2.420(i) and Section 119.11(1), Florida Statutes.
10. Judge Coleman's February 17, 2026 Alternative Writ (Doc. 62) commanded Defendants to produce or 'show cause in writing why this Court should not issue a

peremptory writ.' Defendants' responsive filings (Docs. 65 and 72) did neither. They failed to identify the specific records withheld, failed to particularize exemptions as required by §119.07(1)(f) and Rule 2.420(m)(2), and offered no sworn evidence. By substituting a conclusory label for a factual return, Defendants have effectively refused to respond. Under the combined weight of Rule 1.630(e) and the preliminary hearing mandate of Rule 1.140(d), the entry of a Peremptory Writ is the required ministerial operation of the law—leaving this Court with no discretionary alternative.

C. The Refusal to Identify Forecloses Every Mechanism of Judicial Review and Is Independently Dispositive.

11. Every mechanism for adjudicating a claimed exemption presupposes identification of the records at issue. Section 119.07(1)(g) authorizes in camera inspection—**impossible** without identification. Rule 2.420(c)(9)(B)–(C) and Rule 2.420(e)(3)(G) require findings of "no broader than necessary" and "no less restrictive measures"—**impossible** without record-specific analysis. Appellate review under Rule 9.100 requires a reviewable record—**impossible** where the trial record does not identify what was withheld. A custodian who refuses to identify thus creates an un-reviewable confidentiality claim, nullifies every statutory safeguard, and transforms the scheme into a secret-exemption regime the Florida Constitution does not authorize. The only coherent reading is that identification is a **condition precedent** to any exemption claim—and its absence operates as waiver.

D. The Constitutional Presumption of Access Cannot Be Rebutted by a Conclusory Label.

12. Article I, Section 24(a) guarantees every person "the right to inspect or copy any public record" of the state. Exemptions are disfavored, narrowly construed, and must be supported by a particularized showing. *Woolling*, 764 So. 2d 765 (Fla. 5th DCA 2000).2; *Baker County Press*, 870 So. 2d 189; *Lee*, 189 So. 3d at 126. A custodian

asserting confidentiality without identification and without particularized reasons has not carried the constitutional burden—he has transferred it back onto the requester to disprove a phantom exemption. That inverts the constitutional structure. The Court is bound to restore the proper allocation of burdens, which on this record means the withholding fails.

E. The Court Should Strike Defendants' Unparticularized Confidentiality Assertion as Legally Insufficient Under Rule 1.140(f), Applied Through Rule 1.630(a).

13. Rule 1.630(a) provides that mandamus actions "are governed by the Florida Rules of Civil Procedure." Rule 1.140(f) authorizes the Court to strike any "insufficient defense." Defendants' unparticularized, record-blind, unsupported confidentiality assertion is, as a matter of pleading sufficiency, no different from a conclusory affirmative defense without factual allegations—and Florida courts routinely strike such defenses. Plaintiff therefore moves, in the alternative to the waiver and Rule 1.630(e) grounds above, for an order **striking** the claimed exemption as legally insufficient on its face. Once stricken, Defendants' filings contain no defense to the production commanded by the Alternative Writ, and the peremptory writ follows as a matter of law. This gives the Court a familiar civil-litigation lever to reach the same result the waiver analysis independently commands—with no discretionary sanctions finding and no further evidentiary development.

**III. THE RECORD ESTABLISHES PROCEDURAL AND
SUBSTANTIVE FAILURES**

14. Plaintiff's position, stated at the April 13, 2026 hearing, is that the peremptory writ should issue on the pleadings. Defendants have not met their burden of production on any claimed exemption. More fundamentally, Defendants have not even identified the universe of responsive records in their custody. They have produced no catalog, no inventory, and no description by date, author, or

subject of the records they are withholding. There is therefore no record against which any claimed exemption can be tested by the Court, by Plaintiff, or by any reviewing court.

15. Defendants have not complied with §119.07(1)(f) or with Rule 2.420(m)(2); they have not provided a particularized written statement of the basis for any denial of access. Defendants have not filed a Motion to Determine Confidentiality under Rule 2.420(e)(1) with the specificity, bases, and specific legal authority that rule requires. Defendants have not produced a privilege log. These are not minor procedural lapses; they are the very predicates the Florida Constitution, the statutes, and the Rules of Judicial Administration require a custodian to satisfy before withholding a judicial-branch record from public access.

16. The identification failure is independently dispositive. Section 119.07(1)(g), Florida Statutes, authorizes the Court to conduct an in camera inspection of records a custodian claims are exempt. Rule 2.420 likewise contemplates judicial inspection where confidentiality is properly raised. In camera inspection is, however, impossible where the custodian has never identified the records at issue. A public-records respondent cannot insulate its withholding from both production and judicial inspection by declining to say what it is withholding – especially when the withholding is damaging litigants under its jurisdiction as in these facts. Delay caused by the custodian's refusal to identify withheld records is itself a denial of access. Allowing that posture to continue would nullify both the constitutional right of access in Article I, Section 24 and the "immediate hearing" mandate of §119.11(1).

IV. IN THE FURTHER ALTERNATIVE, FORMAL SANCTIONS ARE WARRANTED UNDER RULE 2.420(i), RULE 1.380, § 119.12, AND THE COURT'S INHERENT AUTHORITY — CUMULATIVE TO SECTION II

17. The arguments set forth in Section II above dispose of this case as a matter of law, without any need for the Court to reach the discretionary sanctions question. Plaintiff nevertheless preserves and formally invokes sanctions against the Judicial Defendants and against their counsel of record, Senior Assistant Attorney General Jessica Schwieterman and the Office of the Attorney General, under Rule 2.420(i), Rule 1.380, §119.12, §57.105, and the Court's inherent authority. The Court need not find bad faith or impose sanctions to grant the relief Plaintiff seeks. Entry of the peremptory writ on waiver grounds (Section II.A), on insufficient-return grounds (Section II.B), on impossibility-of-review grounds (Section II.C), on constitutional-presumption grounds (Section II.D), or on motion-to-strike grounds (Section II.E) is the cleanest and most appropriate disposition and does not implicate sanctions at all. Sanctions are formally demanded and preserved, in the alternative, for the Court to reach only if it declines the Section II grounds.

A. Rule 2.420(i): Defendants Seek Confidential Status for the April 4, 2025 Video Without the Good-Faith, Record-Specific Procedural Showing Rule 2.420(e)(1) Requires.

18. Rule 2.420(i)(2) authorizes sanctions against "any party or non-party and/or their attorney" who, in violation of Rule 2.420, "seeks confidential status for non-confidential information by making any oral or written motion under subdivision (d)(3), (e), (f), (g), or (h)." The predicate finding is that the motion or filing "was not made in good faith and was not supported by a sound legal or factual basis." Defendants' claim of confidential status for the April 4, 2025 hearing video satisfies every element.

19. Defendants have asserted that the April 4, 2025 video is confidential. In their September 8, 2025 denial letter, and again in Doc. 65 8D and Doc. 72, Defendants have maintained that the video is "confidential surveillance video

footage" exempt under §119.071(3)(a), Florida Statutes. The Judicial Defendants have invoked that purported confidentiality to resist production in correspondence, in their formal responsive pleadings, and most recently in their April 1, 2026 Motion for Protective Order (Doc. 72). Each of those filings is an "other activity" within the ambit of Rule 2.420(i), and Doc. 72 is expressly a written motion.

20. Defendants did not use the procedure Rule 2.420 requires for asserting confidentiality of a court record. Rule 2.420(e)(1) requires that a request to determine the confidentiality of trial court records in a noncriminal case "must be made in the form of a written motion captioned 'Motion to Determine Confidentiality of Court Records'" that (A) "identifies] the particular court records or a portion of a record" with specificity; (B) "specifies] the bases for determining that such court records are confidential"; and (C) "set[s] forth the specific legal authority and any applicable legal standards for determining such court records to be confidential." The rule further requires that the motion be accompanied by "a signed certification by the party or the attorney for the party making the request that the motion is made in good faith and is supported by a sound factual and legal basis." Defendants have filed no such motion. They have tendered no such certification. They have by-passed the formal confidentiality channel the rule requires.

21. The informal confidentiality claim is not supported by a sound legal or factual basis. A hearing conducted in a public courtroom is not, as a matter of common sense or of statutory construction, a "security system plan or portion thereof" within the meaning of §119.071(3)(a). The cameras in any Florida courtroom are mounted in plain view, and the coverage—the bench, the well, the gallery—is apparent to every member of the public who enters. A single hearing recording reveals nothing about camera placement, coverage, or

protocols that is not already obvious. Defendants have offered no affidavit, no system-level documentation, no in-camera tender, and no "no less restrictive measures" analysis as Rule 2.420(c)(9)(B)–(C) would require. The burden of supporting an exemption falls on the custodian. *Woolling.v.Lamar*, 764 So. 2d 765 (Fla. 5th DCA 2000); *Board.of.Trustees?Jacksonville.Police.™.Fire.Pension.Fund.v.Lee*, 189 So. 3d 120, 126 (Fla. 2016). Defendants have not begun to carry that burden. The inference is straightforward: had Defendants been prepared to sign a Rule 2.420(e)(1) good-faith certification, they would have filed one. They did not. The omission itself is probative.

22.The conduct fits Rule 2.420(i)(2) precisely. Defendants have, in substance, sought confidential status for non-confidential information through filings in the Rule 2.420 universe, without invoking the formal Rule 2.420(e) Motion-to-Determine-Confidentiality procedure and without the signed good-faith certification that procedure requires. After notice and opportunity to respond, sanctions are warranted.

23.The Rule 2.420(i) analysis does not stand alone. The broader pattern of bad-faith conduct supporting sanctions is documented below under Rule 1.380, §119.12, §57.105, and inherent authority. That broader record informs the Rule 2.420(i) good-faith determination and is independently sufficient under the other sanctions authorities invoked.

B. Independent Bad-Faith Record Supporting Sanctions Under All Invoked Authorities.

24.The withholding is unsupported as law and fact, and the Initial Disclosures confirm it. Defendants have never identified what they are withholding, never produced a privilege log, never filed a Rule 2.420(e)(1) motion, and offered no affidavit or competent evidence supporting the §119.071(3)(a) security

exemption asserted for the April 4, 2025 video. Their March 10, 2026 Initial Disclosures (Doc. 70) compound the defect: Rule 1.280(a) required identification of witnesses and the subjects of their testimony, plus categories and locations of supporting documents. Defendants identified four witnesses without telephone numbers and without subjects (Doc. 70 §A), and their sole document disclosure is a circular reference to the records Plaintiff himself already filed (Doc. 70 §B). Zero internal search logs. Zero exemption analyses. Zero administrative memoranda. Defendants cannot claim statutory exemptions justify withholding and decline to disclose the administrative records that would demonstrate those exemptions. That contradiction is not oversight—it is selective disclosure as obstruction.

25. Plaintiff put Defendants on formal notice; Defendants doubled down and then confessed non-compliance. In written correspondence dated March 18, 2026 (attached as Exhibit A), Plaintiff demanded an amended disclosure specifying the subjects of each witness's testimony, identifying internal administrative records by category and location, producing the required privilege log, and cooperating in scheduling depositions.
26. Defendants did not amend, did not produce a log, did not provide deposition dates, and did not respond substantively. Silence in the face of formal notice and specific demand is "lack of good faith" within the ordinary meaning of Rule 2.420(i) and within Florida's adoptive-admission jurisprudence. See §90.803(18)(b), Fla. Stat.

C. Rule 1.380 Discovery Sanctions: Defendants' Initial Disclosures and Refusal to Cooperate on Depositions Violate Rule 1.280.

27. Rule 1.380 authorizes sanctions for failures to make required disclosures or to cooperate in discovery. Both failures are present. Defendants' Initial

Disclosures violate Rule 1.280 in the particulars identified in paragraph 14 above. Defendants' refusal to provide any deposition dates—despite Plaintiff's repeated written demands of March 3, March 18, and thereafter—violates Rule 1.280's parallel duty to cooperate in the discovery process. See Fla. R. Civ. P. 1.380(a), (b), (d), authorizing sanctions including the payment of fees, striking of defenses, and adverse inferences.

28. Defendants' posture is particularly indefensible because Defendants themselves initiated discovery. (See Exhibit A; Schwieterman, Jan. 20, 2026, indicating she would "move on to discovery once... initial disclosures were provided.") Plaintiff served his initial disclosures on February 17, 2026. Defendants' responsive disclosures were due March 6, 2026. They arrived on March 10, 2026, four days late, and in the facially deficient form described above. Defendants cannot formally invoke the initial-disclosure process as the condition for discovery and then, under the guise of a "stay" motion, disclaim the discovery obligations that process triggered.

D. § 119.12 Bad-Faith Fees Against the Custodian.

29. Section 119.12(1), Florida Statutes, provides that the Court shall assess reasonable costs of enforcement, including attorney's fees, against the custodian that unlawfully refused access, and §119.12(2) extends that fee exposure to "any agency, public officer, or person" found to have acted in bad faith in denying access. The record in this case—the absence of a privilege log, the unsubstantiated security exemption, the Doc. 72 admission, the facially deficient initial disclosures, the refusal to schedule depositions, and the pattern of selective concealment of records bearing on judicial conduct later found to warrant disqualification—is more than sufficient to satisfy the bad-

faith standard. Plaintiff preserves and formally demands \$119.12 fees against the Judicial Defendants.

E. Sanctions Against Counsel Under § 57.105 and the Court's Inherent Authority.

30. Plaintiff further demands sanctions against Senior Assistant Attorney General Jessica Schwieterman and the Office of the Attorney General under §57.105, Florida Statutes, and the Court's inherent authority to sanction bad-faith litigation conduct. A position is not made in good faith where counsel knows, or by reasonable inquiry would know, that no competent evidence supports it. Counsel's continued assertion of the security exemption for the April 4, 2025 video, without any affidavit, system documentation, or in camera tender; counsel's filing of a Motion for Protective Order that simultaneously concedes non-compliance with Chapter 119 and asks the Court to stay discovery into that non-compliance (Doc. 72 at 5); and counsel's refusal to provide a privilege log, subjects of testimony, or deposition dates notwithstanding formal written demand on March 18, 2026 (Ex. A), all satisfy the standard.

31. Sanctions at the individual-attorney level are warranted both as a direct remedy and to break the pattern by which the Office of the Attorney General has, in this case, operated as a procedural shield for the very misconduct the public-records law was enacted to illuminate.

F. Specific Sanctions Requested.

32. Plaintiff requests the following sanctions, imposed jointly and severally against the Judicial Defendants and their counsel as appropriate under the authority invoked for each:

(a) Entry of the peremptory writ of mandamus as a sanction under Rule 2.420(i) and Rule 1.380(b)(2)(A), on the ground that Defendants' exemption defenses are

unsupported by competent evidence, not disclosed through required channels, and therefore waived;

(b) Striking all claimed exemptions as a discovery sanction under Rule 1.380(b)(2)(B) and (C), with the consequence that the records must be produced without redaction;

(c) Adverse inference under Rule 1.380(b)(2)(A) and the Court's inherent authority, to the effect that the records Defendants have refused to identify contain evidence unfavorable to Defendants' position in this proceeding;

(d) Attorney's fees and costs under § 119.12, § 57.105, Rule 1.380(a)(4) and (b)(2), and the Court's inherent authority, with amounts to be determined by subsequent affidavit;

(e) Prohibition under Rule 1.380(b)(2)(B) against Defendants' introduction of any evidence in support of any exemption defense that was not produced through the mandatory disclosure channels described in Section I above;

(f) any and all additional sanctions the Court deems appropriate in light of the findings made.

33. For the avoidance of doubt: Plaintiff respectfully submits that sanctions (a) and (b) would have the legal effect of producing the peremptory writ by a second route, which is why Plaintiff emphasizes that the Court need not reach the sanctions question to enter the writ on the existing record under Rule 1.630(e) and Rule 1.510. Sanctions are requested in the full-force formal sense, but the path of least procedural friction to the relief Plaintiff ultimately seeks is entry of the peremptory writ on the existing undisputed record.

V. RELIEF REQUESTED

34. Because any disposition of this extraordinary-writ proceeding is subject to appellate review under Florida Rule of Appellate Procedure 9.030 and 9.100,

Plaintiff respectfully requests that the Court's ruling be reduced to a written order containing findings sufficient to permit meaningful review. At minimum, Plaintiff requests that the order specifically address the following:

- a.** Whether Defendants have identified, on a record-by-record basis, any specific record being withheld, and the legal effect of any failure to do so under §119.07(1)(f), Rule 2.420(e)(1)(A), Rule 2.420(m)(2), and the waiver principles set forth in Section II.A;
- b.** Whether Defendants have produced a privilege log or equivalent particularized written statement of reasons for any claimed exemption, and, if not, the legal effect of that failure under §119.07(1)(f) and Rule 2.420(m)(2) and (e)(1)(B)–(C);
- c.** Whether Defendants have placed competent record evidence before the Court sufficient to create a genuine issue of material fact as to any claimed exemption, the custodian bearing the burden;
- d.** If the Court declines to issue the peremptory writ, the specific material facts found genuinely disputed and the evidentiary record on which any such dispute rests, as required by Rules 1.630(e) and 1.510;
- e.** Whether any confidentiality determination the Court may make satisfies the findings required by Rule 2.420(c)(9)(B)–(C) and Rule 2.420(e)(3)(G), including "no broader than necessary" and "no less restrictive measures," and whether in camera inspection under §119.07(1)(g) is being invoked (and if so, the scope and schedule); and
- f.** Whether the conduct documented in Section IV above and in Exhibit A satisfies the sanctions standard of Rule 2.420(i), Rule 1.380, §119.12, §57.105, and the Court's inherent authority, and, if so, the specific sanctions imposed.
- g.** Any example of when Plaintiff was wrong on the law as Judge Coleman suggested during the recent hearing.

35. To give effect to the "immediate hearing" mandate of §119.11(1) and the expedited disposition contemplated by Rule 2.420(e)(2), Plaintiff requests that, if the Court does not enter the peremptory writ upon consideration of this Motion, the Court enter a written order setting: (i) within seven (7) days, Defendants shall produce a record-by-record identification of all responsive records within their custody, identifying each record by date, author, recipient(s), and general subject matter, together with the specific statutory, constitutional, or rule-based exemption claimed as to each; (ii) within fourteen (14) days of entry of the order, the Court shall conduct in camera inspection of any record as to which an exemption is claimed; and (iii) within twenty-one (21) days of entry of the order, the Court shall enter its ruling on the petition for the peremptory writ.

36. Plaintiff does not seek reconsideration and does not seek to expand the record. Plaintiff seeks a ruling that completes the Court's duties to expedite these proceedings to include a written order identifying the material facts requiring resolution, setting any hearing on those facts, and imposing deadlines consistent with the "immediate hearing" mandate—so that the parties and any reviewing court can understand the basis for the Court's ruling. The sanctions request in Section III is formally preserved for ruling whether or not the Court elects to reach it in the first instance.

WHEREFORE

Plaintiff respectfully requests that the Court:

A. Enter the peremptory writ of mandamus on the existing record, on the ground that Defendants have waived any claimed exemption as a matter of law (Section II.A); that their return is legally insufficient under Rule 1.630(e) (Section II.B); that their refusal to identify forecloses every mechanism of judicial review (Section

II.C); and that a conclusory confidentiality label cannot rebut the Article I, Section 24 presumption of access (Section II.D);

B. In the alternative, strike the Judicial Defendants' unparticularized confidentiality assertion from the record as legally insufficient under Florida Rule of Civil Procedure 1.140(f), applied through Rule 1.630(a) (Section II.E), and thereafter enter the peremptory writ;

C. In the further alternative, impose sanctions under Rule 2.420(i), Rule 1.380, § 119.12, § 57.105, and the Court's inherent authority, in the specific forms identified in Section IV.F above, against the Judicial Defendants and their counsel of record jointly and severally as appropriate for each authority invoked;

D. In the further alternative, enter a written order containing findings addressing the items set forth in Section V subparts a–f above, setting any evidentiary hearing on the specific material facts the Court identifies as genuinely disputed, and imposing the deadlines set forth above; and

E. Grant such further relief as the Court deems just and proper, including reservation of jurisdiction for a subsequent fees hearing under § 119.12 and § 57.105.

Certification/Declaration:

I, Christopher Hanson, both as plaintiff and plaintiff's attorney, and as an officer of the Court, declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, that the March 18, 2026 email attached as Exhibit A is a true and correct copy of correspondence I sent to Senior Assistant Attorney General Jessica Schwieterman on that date, and that Defendants did not substantively respond to that correspondence.

Certified and executed on April 15, 2026.

/s/Christopher Hanson

Christopher Hanson

cahanson77@yahoo.com

727-409-5738

FL bar #44094

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed and served via the Florida Courts E-Filing Portal on this 15 day of April, 2026, to:

Jessica Schwieterman, Esq.

Senior Assistant Attorney General

Office of the Attorney General

3507 E. Frontage Road, Suite 200

Tampa, FL 33607

Jessica.Schwieterman@myfloridalegal.com

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Counsel for Defendant Clerk of Court

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

Service of Discovery requests for admissions, interrogatories, and requests for production:
Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5
HEARING

From: cahanson77@yahoo.com (cahanson77@yahoo.com)

To: truthoverchaos@outlook.com; jessica.schwieterman@myfloridalegal.com

Cc: keiana.wilkerson@akerman.com; jason.margolin@akerman.com

Date: Wednesday, March 18, 2026 at 03:33 PM EDT

Dear Jessica,

I had an opportunity to review your initial disclosures in detail. There is still nothing within any of the pleadings from the Attorney General's Office, responses from the 13th Circuit, nor in the initial disclosures, nor any combination of which, that provide any basis for an exemption and continuing concealment of these public records. I should be clear about what I am alleging and what I have alleged for some time now: The State Attorney General's Office is actively working to assist the 13th Circuit in concealing ongoing judicial misconduct and likely the Commission of Financial Crimes for no good faith purpose in these facts. You have 13th circuit actors guilty of what would amount to severe discovery abuses, intentionally concealing and attempting to conceal the concealment, related to a valid request for documents. It's very difficult for me to understand how the Attorney General's Office, Judge Freeman, Judge Coleman, and others can continue to actively assist in preventing necessary accountability. I will continue in my efforts to secure a full investigation into this misconduct.

Your initial disclosures, in addition to being late, are facially insufficient and violative of Rule 1.280.

1. Facial Insufficiency of Witness Disclosures and the Concealment of Testimony: The Defendants' Initial Disclosures fundamentally fail to comply with the strict mandates of the Florida Rules of Civil Procedure. The rule requires that a disclosing party provide not only the name, address, and telephone number of each individual likely to have discoverable information, but also specifically identify the *subjects of that information*. You list four individuals—Chief Judge Christopher C. Sabella, Judge Kelly Ayers, Judge Matthew Felix, and Rick Melindi—but provide only a shared courthouse address for each (Initial Disclosures, p. 1, § A.I-IV). The disclosures completely omit telephone numbers and, fatally, fail to offer a single word describing the likely testimony or the specific subjects of the discoverable information these witnesses possess. Shielding the subject matter of these witnesses' expected testimony is a direct violation of the

rule's plain language and operates as a continuation of the unlawful **"delay, obstruct, and conceal"** mission.

2. The Document Disclosure Logic Trap: The rule further mandates a description by category and location of all documents and electronically stored information the disclosing party has in its possession, custody, or control to support its defenses. Defendants' sole document disclosure is a circular reference to "Public Records that were previously provided to Plaintiff and filed in this case on October 15, 2025, located on the docket as DIN 6" (Initial Disclosures, p. 1, § B.I). This creates a fatal **Logic Trap**: Defendants cannot legally claim that specific statutory exemptions justify their withholding of the April 4th video and the targeted December 13/January 9 emails, while simultaneously disclosing zero internal administrative search logs, IT search queries, or exemption-analysis data and memoranda to support those defenses. By relying exclusively on documents Plaintiff already filed and completely omitting their own internal records, Defendants are utilizing **"selective disclosure as obstruction,"** effectively hiding the administrative trail that would prove the bad-faith handling of the records requests.

3. Demand for Immediate Cure: By submitting bare-bones disclosures that omit the required subjects of testimony and internal documentary evidence, Defendants are attempting to maintain improper concealment of records from public access, violative of the Florida and federal constitutions. I am formally demanding an amended Initial Disclosure that fully complies with the Florida Rules of Civil Procedure by specifying the exact subjects of each witness's likely testimony and categorizing the internal administrative records they intend to use to support their defenses.

Certainly, given the listed witnesses and failure to specify testimony to be offered, I need to take the depositions of all of the individuals on that list. Please let me know if you will cooperate in scheduling the depositions for your listed witness for the first available dates. I'd like to set aside at least 1 hour for each disposition with at least an hour between depositions if they are to be scheduled the same day. I will take the first hour you have on your calendar and do them one at a time to make sure we are completing them in a timely fashion.

Regarding your request for authority supporting discovery in these proceedings, you formally initiated discovery in this matter by requesting my initial disclosures. You cannot, in good faith, now take the opposite position. Further, Florida Rule of Civil Procedure 1.630(a) explicitly states that actions for the issuance of writs of mandamus are civil actions governed by the Florida Rules of Civil Procedure. Because mandamus is an original civil action, the broad discovery rights afforded to all litigants under Rule 1.280 apply. There is no statutory carve-out exempting Rule 2.420 mandamus defendants from this discovery.

While public records proceedings are designed to be summary and expedited, the Respondents and the Sixth Circuit have actively, intentionally, and unlawfully delayed an expedited timeline in this case. The State cannot stretch this into a protracted litigation to delay records access while simultaneously invoking the "expedited" nature of the rules as a shield against standard civil discovery.

Furthermore, your Initial Disclosures are entirely devoid of any factual assertions, legal defenses, or specific claims of exemption that could conceivably support a defense to production. Responsive documents were identified by your client. There seems to be no support whatsoever for Defendants withholding the "security" video. What is the basis for continuing to withhold these materials from public access? Where is the evidence of the security exemption? You have not produced a privilege log, nor have you articulated a single substantiated reason for withholding the remaining communications and hearing videos.

Without any pled facts or exemptions to justify this withholding, the Office of the Attorney General is engaged in naked obstruction. You are intentionally delaying access to public records to shield the 13th Circuit from accountability for the very misconduct that continues to severely harm my family and me as a litigant in that circuit. To make matters even worse, I pleaded with the Attorney General's Office on multiple occasions to investigate this exact systemic corruption. Instead of investigating the documented abuses, the Attorney General is now deploying its resources to protect the perpetrators from transparency and constitutional mandates.

I am reiterating my formal request for dates to schedule depositions and to obtain formal responses to the attached discovery requests. Please provide three available dates in late March or early April 2026 for the depositions of Judge Kelly Ayers, Dwuuna Heyward, Scott Davis, and Vivian Hodz, as well as a designated representative with knowledge of the 13th Circuit's security and camera systems. If I do not receive available dates from you by close of business on Friday, March 13, 2026, I will unilaterally notice these depositions.

On a side note, you will also find correspondence related to my requests for public records sent to the Florida AG's office over a month ago. I have heard nothing back. The need for state actors to conceal records reflects the scope of corruption and misconduct plaguing the system. This is not a problem that will go away. Anyone that supports these obvious and intentional state actions violative of the constitutional mandate for transparency and my family's constitutional rights, reveal him/herself as complicit in this very serious ethical and constitutional crisis, to this point, still expanding in the Florida Courts and beyond.

I continue to request a conference with the state attorney general himself and/or with someone in leadership within the AG's office. Please let me know if you will comply with any of the above.

Regards,

Christopher A. Hanson, Esq. Florida Bar No. 44094

727-409-5738

On Tuesday, March 10, 2026 at 04:40:56 PM EDT, Jessica Schwieterman
<jessica.schwieterman@myfloridalegal.com> wrote:

Please see the attached initial disclosures.



Jessica Schwieterman
Senior Assistant Attorney General
Civil Litigation Central

OFFICE OF ATTORNEY GENERAL JAMES UTHMEIER
3507 E. Frontage Road., Suite 200 | Tampa, FL 33607
Office: (813) 233-2880 ext. 4564
E-mail: Jessica.Schwieterman@myfloridalegal.com

From: cahanson77@yahoo.com <cahanson77@yahoo.com>

Sent: Tuesday, March 3, 2026 3:17 PM

To: Jessica Schwieterman <Jessica.Schwieterman@myfloridalegal.com>; Christopher Hanson
<truthoverchaos@outlook.com>

Cc: keiana.wilkerson@akerman.com; jason.margolin@akerman.com

Subject: Re: Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5
HEARING

Dear Ms. Schwieterman:

I hope this email finds you well.

On January 20, 2026, you indicated that you would be happy to move on to
discovery once my initial disclosures were provided. On February 17, 2026, I
forwarded my remaining initial disclosures, including the witness list and exhibit list.
Pursuant to Florida Rule of Civil Procedure 1.280 and the recent amendments
requiring initial disclosures, your initial disclosures are now late. Accordingly, please
provide the Defendants' initial disclosures by the end of the week to avoid a
motion. It is important that I get those in a timely fashion as there are so many
unanswered questions in the case.

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The continued delay in discovery is having a direct and ongoing detrimental impact on the stability and well-being of my minor children given the parallel dissolution-of-marriage proceedings (Hanson v. Hanson, 13th Circuit Case No. 24-DR-001150), where these concealed records and the underlying judicial conduct overlap significantly. Timely production is therefore critical not only to this action but to protecting my children's best interests, including shielding them from a judge who is in a position to suppress evidence to protect himself and other from accountability from severe misconduct.

|

I do not understand the 13th Circuit's basis for continuing to conceal documents relating to the December 13th, 2024, and January 9th, 2025 hearings. Given the confirmation that responsive records exist in relation to those hearings and the unrefuted allegations of intentional concealment with bait and switch and document dumping of irrelevant and unrequested records, it's difficult to understand how the Attorney General's office can continue to support concealment of those documents from Public Access. Unless I'm missing something, it's a direct, intentional, and ongoing violation of my constitutional rights.

I am not seeking any damages so judicial immunity does not apply. Please let me know the basis for continuing to conceal those records or provide them immediately. If there are "mental impressions" in Public records, they are still public records. That is especially so given the failure to produce a privilege log and the bad faith tactics used so far to conceal them. Hopefully the initial disclosures will provide me some understanding of the defendant's position

Additionally, with respect to the security footage (the only record for which an exemption has been asserted), I object to hearsay and authentication of any purported grounds and reserve additional objections for if and when any documentation is ever provided. To date, I have nothing providing any substantiation for the vague "security" objections. Please immediately provide any documents or evidence you have supporting that assertion that the video Judge Ayers offered on the records on 4-4-26 is strictly part of a protected security system. Further, please let me know if anyone has watched the video and/or performed any analysis on the public interest in the record outweighing the alleged security concern, especially with

ways to limit that aspect of the problem.

As I've requested multiple times, I would also like to schedule depositions, beginning with Judge Kelly Ayers and her judicial assistant, Ms. Heyward, as previously discussed, attorneys Scott Davis, and Attorney Vivian Hodz, and a member of security personnel with knowledge of the camera systems and the video at issue. Please provide several dates of availability during March and April 2026.

I also want to reiterate my concerns about the constitutionality of the Attorney General's involvement. I'm continuing to request both as a citizen and as a litigant the opportunity to speak with the Attorney General of Florida himself or some regional or area director with supervisory authority over the Office's involvement in this case. Please let me know if you are simply refusing to pass along that message or if there is anything you can do to help make that happen.

Please confirm receipt and provide the requested production or dates by close of business on **March 10, 2026**.

Thank you for your prompt attention.

Best regards,

Christopher A. Hanson, Esq.

Florida Bar No. 44094

cahanson77@yahoo.com (<mailto:cahanson77@yahoo.com>)

727-409-5738

On Tuesday, February 17, 2026 at 11:10:06 AM EST, cahanson77@yahoo.com <cahanson77@yahoo.com> wrote:

Hi Jessica - here's a link to the remaining initial disclosures documents. [initial disclosures](#) I thought this went over a few days ago, but I don't see the email here at the moment. There is a list of the anticipated exhibits and then witnesses. I'm not convinced that this provision applies to public records writs, but here you go either way. if you think anything is lacking on initial disclosure compliance, please let me know ASAP. Please send over your initial disclosures.

Again, I think the Judges in the 6th Circuit are intentionally violating my constitutional rights in efforts to assist the 13th Circuit to delay or even avoid consequences. I'm shocked the attorney general's office is simply ok with supporting intentional constitutional violations like this.

The 13th Circuit has still not provided any additional records they've confirmed they have. These records are critical to cases in active litigation. It's really disheartening that multiple circuit court judges and the attorney general's office simply support this corruption as it continues to damage my family. These are simple objective facts that are happening on your watch. Pretending that this isn't happening violates the core mission of attorneys and judges - to find the truth and ensure justice. Florida really has turned the corner to prioritize protect the elite ruling class regardless of what their corruption does to commoners. I still haven't heard or seen anything that begins to poke holes in this very basic and concerning story of this litigation.

I continue to request that the attorney general's office begin to investigate the violations and corruption in the 13th Circuit instead of defending it. I have a few filings in the works, but efficiency remains my goal. I had reached out to the attorney general's office multiple times for help with the corruption in the 13th Circuit. What happened with those complaints? How is that not a conflict of interest with the AG's office current status defending that very same circuit. Was there an investigation where the 13th Circuit was cleared? Or is the AG office simply choosing to believe the elite ruling class members over the commoner despite all of the evidence supporting the commoner's position?

Please let me know if you have any answers to these concerns and on dates for the depositions. I'd like to start by getting Judge Ayers and her JA, Ms. Heyward. Please let me know your first available date to get those on the calendar. We also need dates for another hearing based on something I filed last night. I'll send that to you and the judge separately.

Again, please be sure to provide complete initial disclosures no later than March 6, 2026 to avoid a motion including a separate request for fees and costs.

Thank you.

Chris Hanson
FL Bar #44094

On Thursday, February 5, 2026 at 03:31:58 PM EST, Jessica Schwieterman
<jessica.schwieterman@myfloridalegal.com> wrote:

Thank you,

I will attend in person.



Jessica Schwieterman
Senior Assistant Attorney General
Civil Litigation Central

OFFICE OF ATTORNEY GENERAL JAMES UTHMEIER

3507 E. Frontage Road., Suite 200 | Tampa, FL 33607

Office: (813) 233-2880 ext. 4564

E-mail: Jessica.Schwieterman@myfloridalegal.com

From: Section6 <section6@jud6.org>

Sent: Thursday, February 5, 2026 3:30 PM

To: Jessica Schwieterman <Jessica.Schwieterman@myfloridalegal.com>;
jason.margolin@akerman.com; keiana.wilkerson@akerman.com; cahanson77@yahoo.com

Subject: Case 25-CA-010255 Hanson V Thirteenth Judicial Circuit, et al. ZOOM LINK FOR 2/5 HEARING

Good afternoon,

In an abundance of caution, Judge Coleman wanted me to send a separate email just relaying again that he is permitting zoom appearance for tomorrow's hearing. Below is the zoom link. Let us know if there are any questions.

<https://zoom.us/j/91614250159?pwd=bq1kxRdbRkkHfXb3QXn2VT0Uhdbagf.1&from=addon>

Meeting ID: 916 1425 0159

Passcode: 154093

Have a good evening,

Nichelle Ramsay, Judicial Assistant

Judge Sherwood Coleman, UFC-Section 6 | Sixth Judicial Circuit

Pinellas County Justice Center

14250 49th Street North, Annex Bldg., Suite J3.210

Clearwater, FL 33762

727-464-6137 office

nramsay@jud6.org and section6@jud6.org

[Judge Coleman's Practice Preferences](#)

Please note that Florida has a very broad public records law. Most written communications to or from state officials regarding state business are considered public records. Your e-mail message may be subject to public disclosure upon request.



combined RFA ROGS and RTP to defendants 13th Circuit.pdf
89.5 KB



3-13-26 email to AGs office.pdf
659.6 KB



combined RFA ROGS and RTP to defendants 13th Circuit.pdf
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3-13-26 email to AGs office.pdf
659.6 KB

CHRISTOPHER HANSON, ESQ.

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Tampa, FL 33607

Jessica.Schwieterman@myfloridalegal.com

Sent via email to Jessica.Schwieterman@myfloridalegal.com

4-15-26

Re: Hanson v. Thirteenth Judicial Circuit Court, et al.

Case No.: 25-CA-010255 (Div. B)

NOTICE PURSUANT TO FLA. STAT. § 57.105

Dear Ms. Schwieterman:

This letter constitutes formal notice under Florida Statute § 57.105 that the confidentiality claims you have asserted and continue to maintain on behalf of the Judicial Defendants are not supported by material facts or existing law and cannot be supported by any good-faith argument for the extension, modification, or reversal of existing law.

The Judicial Defendants have asserted that the April 4, 2025 hearing video (and other responsive records) are exempt without ever identifying any specific record, without filing the required “Motion to Determine Confidentiality of Court Records” under Florida Rule of Judicial Administration 2.420(e)(1), without providing any particularized written statement of reasons under § 119.07(1)(f) or Rule 2.420(m)(2), and without any competent evidence supporting the singular claimed, “security” exemption.

As a result, any claimed exemptions have been waived as a matter of law. (See Plaintiff’s Motion for Sanctions and Entry of Peremptory Writ, filed April 2026.)

DEMAND

Pursuant to § 57.105(4), you are given twenty-one (21) days from the date of this letter to cure this violation by immediately producing to Plaintiff all responsive records that have been withheld—including the complete, unredacted April 4, 2025 hearing video—without any confidentiality redactions or further delay. I continue to pursue attorney's fees and costs under § 57.105, § 119.12, Rule 2.420(i), and Rule 1.380, and any other sanctions the Court deems appropriate.

Sincerely,

/s/ Christopher Hanson

Christopher Hanson, Esq.

Florida Bar No. 44094

Plaintiff and Counsel for Plaintiff